

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition

Acquisition Plan Action ID: **36C244-26-AP-0073**

1. **Contracting Activity:** Department of Veterans Affairs, VISN4, NCO4, Construction West, VAPHS University Drive Medical Center, Pittsburgh PA 15240.
2. **Nature and/or Description of the Action Being Processed:** Cooling Tower (Baltimore Aircoil Company), These items are to be procured using as a Firm Fixed Priced Task order from Pittsburgh MATOC Contracts . [REDACTED]

Description of Supplies/Services Required to Meet the Agency's Needs: The Central Utility Plant and, most specifically, the facility chilled water system is a major, highly specialized system that includes chillers, associated mechanical and piping components inside the plant, electrical infrastructure, cooling towers, and distribution piping. Changing manufacturers will increase the cooling system downtime (the cooling system is used year-round) providing unacceptable delays in fulfilling the requirements to see and treat patients in the hospital.

Additionally, utilizing the Baltimore Aircoil Company cooling tower avoids substantial duplication of costs by preserving the investment in spare parts and training for maintenance personnel. Cooling towers and chillers are not plug and play they must match existing or the system will not work efficiently and potentially not at all without expensive time consuming work arounds.

3. **Statutory Authority Permitting Other than Full and Open Competition:**
 - (x) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
 - () (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
 - () (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
 - () (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
 - () (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
 - () (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
 - () (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

4. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**

Trane chillers and associated cooling towers are already in use and the existing chillers are viable now and well into the future. There are numerous Trane distributors but failure to utilize a Trane Centrifugal Chiller would require the existing 3 chillers to be replaced. The chillers must match or will not work properly. Replacement of the 3 viable, existing chillers would significantly increase the cost of the project.

5. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** The COR examined manufacturer's literature from the major manufacturer and found that while there were many operational similarities between the products, the piping, electrical and size/weight configurations were unique to each manufacturer.
6. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** Based on the information above, it is hereby determined that this justification for brand name Trane Centrifugal Chiller and Baltimore Aircoil Company cooling tower essential to the Government's requirements, and market research h indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet the agency's needs. Therefore, these products will be specified as a brand name for this construction project as only these products meet the Government's needs. Using a cooling tower that was not from Baltimore Aircoil would result in a large increase in costs due to necessary reconfiguration of the piping system, major alterations to the electrical system and extensive reconstruction of the floor to accommodate different weights and centers of gravity.
7. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** See #5
8. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** Miller Remick the designer of record investigated the use of other chillers and the additional cost far outweighed and benefits to the VA and would have resulted in a much more complex and less reliable system
9. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)**
 - a. **Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

JEFFREY PRUETT

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Jeffrey Pruett
Contracting Officer, Construction West
NCO4

Date